

IN THE SENATE

SENATE BILL NO. 1377

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO PUBLIC NOTICES; AMENDING CHAPTER 1, TITLE 60, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 60-106B, IDAHO CODE, TO ESTABLISH PROVISIONS ALLOWING CERTAIN GOVERNMENTAL ENTITIES TO PUBLISH ABBREVIATED PUBLIC NOTICES IN NEWSPAPERS IN LIEU OF FULL PUBLIC NOTICES AND REQUIRING CERTAIN GOVERNMENTAL ENTITIES TO PUBLISH FULL PUBLIC NOTICES ON THE NEWSPAPER ASSOCIATION OF IDAHO'S WEBSITE FOR PUBLIC NOTICES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 1, Title 60, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 60-106B, Idaho Code, and to read as follows:

60-106B. PUBLICATION OF NOTICES -- ABBREVIATED NOTICES ALLOWED. (1) Notwithstanding any other provision of law to the contrary, any county, city, or school district board of trustees required or provided by the laws of the state of Idaho to publish legal notices, advertisements, or publications of any kind in a newspaper of general circulation in accordance with section 60-106, Idaho Code, may elect to have an abbreviated version of such notice published in accordance with the provisions of this section. The abbreviated public notice shall include, at a minimum:

- (a) The name of the governmental entity issuing the public notice;
- (b) A title and description of the contents of the public notice sufficient to inform the public of such contents;
- (c) The date, time, and location of any meeting, hearing, or action, if applicable; and
- (d) Either an internet link to the website address where the full public notice can be found or a quick response code that links to the website address where the full public notice can be found, or both.

(2) If all requirements of subsection (1) of this section are met, an abbreviated public notice published pursuant to this section shall have the same legal force and effect as full public notices published in a newspaper pursuant to section 60-106, Idaho Code.

(3) Nothing in this section prevents a county, city, or school district board of trustees from electing to publish a full public notice in a newspaper of general circulation.

(4) Whether a county, city, or school district board of trustees elects to publish an abbreviated public notice or a full public notice in a newspaper of general circulation, such entity shall send to the newspaper a copy of the full, unabbreviated public notice to be electronically published on the public notices website of the newspaper association of Idaho.

1 SECTION 2. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 September 1, 2026.